

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

8. DCSS V. BRIAN ORTEGA (OTHER PARENT: REBECCA ANNE GIERHART) PFS20160102

On December 9, 2025, the parties filed a Stipulation and Order Re: Custody/Visitation and Vacating Trial. In accordance with the stipulation, the parties were ordered to attend Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date.

Other Parent filed and served two declarations regarding custody on May 29, 2026.

The parties attended CCRC on June 1, 2026. They were able to reach some agreements but could not agree on all issues. Therefore, a report with the agreements and recommendations was prepared on June 17, 2026. It was mailed to the parties on June 18, 2026.

Other Parent filed and served a reply to the CCRC report and an updating declaration on July 10, 2026.

Respondent has not filed a supplemental declaration or a declaration in response to the CCRC report.

Other Parent asks the court to adopt the agreements and recommendations set forth in the CCRC report with a number of modifications which she enumerates in her July 10th declaration.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the June 17, 2026 report to be in the best interests of the children and therefore, they are hereby adopted as the orders of the court with the following modifications. Regarding legal custody, the parties are to share joint legal custody however, the court is maintaining its order for Other Parent to have final decision-making authority in accordance with the court's order of February 19, 2025. Regarding extracurricular activities, the court is adopting the recommendations in the CCRC report with the additional order that the parties shall permit the children to continue participating in their established extracurricular activities, including soccer and futsal, from season to season. Each parent is ordered to provide transportation for these activities during his or her parenting time. If the custodial parent is unable to do so, the other parent may provide transportation. The parties are to equally share in the costs of soccer and futsal with reimbursement to be made within thirty (30) days of receiving proof of payment. Regarding exchanges, the parties are ordered to remain in their respective vehicles during the

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exchange. Finally, the court is granting the request for minor's counsel. Rebecca Esty Burke is appointed as minor's counsel for the children.

Other Parent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE JUNE 17, 2026 REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEREFORE, THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS. REGARDING LEGAL CUSTODY, THE PARTIES ARE TO SHARE JOINT LEGAL CUSTODY HOWEVER THE COURT IS MAINTAINING ITS ORDER FOR OTHER PARENT TO HAVE FINAL DECISION-MAKING AUTHORITY IN ACCORDANCE WITH THE COURT'S ORDER OF FEBRUARY 19, 2025. REGARDING EXTRACURRICULAR ACTIVITIES, THE COURT IS ADOPTING THE RECOMMENDATIONS IN THE CCRC REPORT WITH THE ADDITIONAL ORDER THAT THE PARTIES SHALL PERMIT THE CHILDREN TO CONTINUE PARTICIPATING IN THEIR ESTABLISHED EXTRACURRICULAR ACTIVITIES, INCLUDING SOCCER AND FUTSAL, FROM SEASON TO SEASON. EACH PARENT IS ORDERED TO PROVIDE TRANSPORTATION FOR THESE ACTIVITIES DURING HIS OR HER PARENTING TIME. IF THE CUSTODIAL PARENT IS UNABLE TO DO SO, THE OTHER PARENT MAY PROVIDE TRANSPORTATION. THE PARTIES ARE TO EQUALLY SHARE IN THE COSTS OF SOCCER AND FUTSAL WITH REIMBURSEMENT TO BE MADE WITHIN THIRTY (30) DAYS OF RECEIVING PROOF OF PAYMENT. REGARDING EXCHANGES, THE PARTIES ARE ORDERED TO REMAIN IN THEIR RESPECTIVE VEHICLES DURING THE EXCHANGE. FINALLY, THE COURT IS GRANTING THE REQUEST FOR MINOR'S COUNSEL. REBECCA ESTY BURKE IS APPOINTED AS MINOR'S COUNSEL FOR THE CHILDREN.

OTHER PARENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.